the corporation. Cases cited, in which the question of jurisdiction has been examined: *Bingham* v. *Cabot*, 3 Dall. 382; 5 Cranch 57; 3 Ibid. 267; 3 Wheat. 591.

The policy of the constitution, in relation to jurisdiction, is to include suits against corporations, although all who are interested are not citizens of the same state. The influence of such corporations, in the state where they exist, makes this appeal to other than state tribunals, expedient. When an action is instituted against trustees, by citizens of another state, would the jurisdiction of the courts of the United States be taken away, by showing that some of those who had a fiduciary interest, were not citizens of the same state with the trustees? The question must be settled, by adverting to the local usages of Georgia; and there suits are brought against the individuals who represent the bank.

Berrien and *Wilde*, for the defendant.—The pleadings show that there is no allegation of citizenship in the stockholders of the bank, the owners of its funds; and the point is fully settled, that all the parties who are sued shall be averred to be citizens of another state, from that of the plaintiff or complainant in the suit. A body corporate, as such, is incapable of citizenship, according to the true meaning of the law giving jurisdiction. This court has decided, that they will go behind the act of incorporation, and ascertain the character of the individual corporators, and if they find them citizens of another state, the suit may be maintained; but there must be an averment of such citizenship, as to every stockholder. 5 Cranch 57; 6 Wheat. 146.

The possession of the fund cannot give the court jurisdiction, as that was the possession of a corporation. No *jurisdiction can be obtained, *240] because of the difficulties in suits against the corporation of one state, by citizens of another; and it is denied, that any such difficulties exist in Georgia.

By the Court.—This is not a case within the jurisdiction of the courts of the United States. The record does not show, that the defendants were citizens of Georgia, nor are there any distinct allegations or averments, that the same was the fact, as to the stockholders in the bank.

This cause came on, &c.: On consideration whereof, this court is of opinion, that as the bill does not aver that the corporators of the Bank of the State of Georgia, which bank is defendant in the suit, are citizens of the state of Georgia, the circuit court has no jurisdiction of the cause, and can grant no relief. It is, therefore, ordered to be certified to the circuit court, as the opinion of this court, that, in the present state of the pleadings, it not appearing that the defendants are citizens of the state of Georgia, the complainants are not entitled to relief in that court.

*James Findlay, William Lytle, Charles Vattier, Robert Ritchie and others, citizens of Ohio, Appellants, *v.* Thomas S. Hinde and Belinda, his wife, citizens of Kentucky, Appellees.

Jurisdiction of equity.—Affidavit of loss of deed.—Discovery.—Parties. Joint appeal.

If, in case where the loss of a deed, or other instrument, is made the ground for coming into a court of equity, for discovery and relief, an affidavit of its loss must be made and annexed to the bill, and the absence of such affidavit is good cause of demurrer; yet, if the party charged by the bill fail to demur for that cause, but answer over, or permit the bill to be taken for confessed, by default, against him; it seems, that the absence of the affidavit is not a sufficient cause for the reversal of the decree. p. 244.

If a deed has not been proved, acknowledged and recorded, and would, therefore, be insufficient against subsequent purchasers, without notice; parties who claim under such deed, have a right to come into a court of equity, for a discovery, upon the ground of notice; and if notice be brought home to subsequent purchasers, the complainants have a right to relief, by a decree quieting the title. p. 245.

Where, in a bill filed for discovery and relief, the party relied upon a deed said to have been lost, but which had never been formally executed to convey the estate; and upon a receipt of the purchase-money, binding the party to convey the same; the person alleged to have executed the lost deed, and who gave the receipt, should have been made a party to the proceeding; although he had, subsequently, by a legal and formal conveyance, duly executed, conveyed the estate to others; and thus, so far as he could, divested himself of all title in the same. p. 245.

The decree of the circuit court directed two of the defendants, in whom was the legal title to the lot of ground claimed by the plaintiff in the bill, to convey the same; and awarded costs, generally, against all the the defendants; all the defendants appealed together to this court, some of whom held the legal title to the lot, and all the defendants had an interest in defending this title, standing as they did in the relation of vendors and warrantors, and vendees. Although the defendants, against whom there is a decree for costs only, could not appeal from this decree for costs; yet, the reversal of the decree of the circuit court was made general, as to all of the appellants, and the whole case opened. p. 247.

Appeal from the Circuit Court of Ohio. The appellees filed their bill in the circuit court of the United States for the district of Ohio, praying a discovery; and that the defendants might convey to the complainants such a title as they have acquired, to a lot of ground in the town of Cincinnati, and deliver up the possession acquired by them; and also that they account for the profits; and for general relief.

The title set up by the complainants was alleged to be derived from a receipt given by Abraham Garrison, in whom the title to the lot was then vested, which receipt was in the following terms:

"Received, Cincinnati, 10th September 1799, of Wm. and *Michael Jones, fifty pounds, thirteen shillings and three pence, in part of a lot [*242 opposite Mr. Conn's, in Cincinnati, for two hundred and fifty dollars, which I will make them a warrantee deed for the same, on or before the twentieth day this instant.

"Test.—Jacob Awl. (Signed,) Abraham Garrison."

And from a deed, executed on the following day, by which Abraham Garrison, for the consideration of $250, conveyed the lot to William and Michael Jones, which deed was said to have been lost by time and accident. The lot was, by subsequent conveyances, claimed to be vested in the complainants. No affidavit was attached to the bill, showing that the deed was not in the complainant's possession, or setting forth that it had been so lost